

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO

Civil Action No. 09-cv-00908-WYD-CBS

GLORIA HUIZAR,

Plaintiff,

v.

LEPRINO FOODS and
RUBEN ESTRADA,

Defendants.

FINAL JUDGMENT

Pursuant to and in accordance with Fed. R. Civ. P. 58(a) and the orders entered during the course of proceedings in this case, the following FINAL JUDGMENT is hereby entered.

I. Pursuant to and in accordance with the Order of Dismissal of Defendant Ruben Estrada, filed on September 11, 2009, by the Honorable Wiley Y. Daniel, Chief United States District Judge, and incorporated herein by reference as if fully set forth, it is

ORDERED that Defendant Ruben Estrada is dismissed and Plaintiff's Fourth and Fifth Claims for Relief judgment are dismissed from this action.

II Pursuant to and in accordance with Order filed on March 18, 2011, by the Honorable Wiley Y. Daniel, Chief United States District Judge, and incorporated herein by reference as if fully set forth, it is

ORDERED that Defendant's Motion for Summary Judgment is GRANTED in favor of Defendant, Leprino Foods, and against Plaintiff, Gloria Huizar, as it relates to Plaintiff's retaliation claim and state law discrimination claim.

III. THIS MATTER came before the Court and a jury of ten duly sworn to try the matter on October 3, 2011 the Honorable Wiley Y. Daniel, United States District Judge, presiding. On October 6, 2011, the jury returned its verdict as follows:

Verdict Form

1. That the Plaintiff was subjected to a hostile or abusive work environment because of her sex?

Answer: No

2. That such hostile or abusive work environment was created by a supervisor with immediate or successively higher authority over the Plaintiff?

Answer: No

3. That the Plaintiff suffered damages as a proximate or legal result of such hostile or abusive work environment?

Answer: No

Note: If you answered "No" to any one of the preceding three questions, then you need not answer the remaining questions.

4. That the Defendant exercised reasonable care to prevent any sexually harassing behavior in the workplace?

Answer: Yes or No _____

5. That the Plaintiff unreasonably failed to take advantage of any preventive or

corrective opportunities provided by the Defendant to avoid or correct the harm?

Answer: Yes or No _____

Note: If you answered "Yes" to both questions 4 and 5, then you need not answer the remaining questions.

6. That the Plaintiff should be awarded damages to compensate for emotional pain and mental anguish?

Answer: Yes or No _____

If you answer is "Yes," in what amount? \$ _____

7(a). That a higher management official of the Defendant acted with malice or reckless indifference to the Plaintiff's federally protected rights?

Answer: Yes or No _____

7(b). If your answer is "Yes," that the Defendant itself had not acted in a good faith attempt to comply with the law by adopting policies and procedures designed to prohibit such discrimination in the workplace?

Answer: Yes or No _____

7(c). If your answer is "Yes," what amount of punitive damages, if any, should be assessed against the Defendant?

\$ _____

IT IS THEREFORE

ORDERED that final judgment is hereby entered in favor of Defendant, Leprino Foods, and against Plaintiff, Gloria Huizar, on Plaintiff's claim of sexual harassment under Title VII, retaliation claim and state law discrimination claim. It is further

ORDERED that Plaintiff's amended complaint and this civil action are dismissed with prejudice. It is further

ORDERED that Defendant shall have its costs by the filing of a Bill of Costs with the Clerk of this Court within fourteen (14) days of entry of judgment.

DATED at Denver, Colorado this 7th day of October, 2011.

FOR THE COURT:

GREGORY C. LANGHAM, CLERK

s/ Edward P. Butler
Edward P. Butler,
Deputy Clerk

APPROVED AS TO FORM:

s/ Wiley Y. Daniel
WILEY Y. DANIEL,
CHIEF UNITED STATES DISTRICT JUDGE